

Before the Federal Maritime Commission, Washington, D.C.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

**COMPLAINANT'S COMBINED MOTION TO EXCEED PAGE LIMITS AND TO
COMPEL REASONABLE DISCOVERY**

1. MOTION FOR LEAVE TO EXCEED PAGE LIMIT (46 C.F.R. § 502.71(d))

Complainant respectfully moves for leave under 46 C.F.R. § 502.71(d) to exceed the 10-page limit for non-dispositive motions for this Motion to Compel. Good cause exists because the Presiding Officer's prior order denying the earlier motion without prejudice requires the renewed motion to set out, for each discovery request at issue, the request, the response, and the specific grounds for deficiency. Granting leave will conserve resources for the Presiding Officer and the parties by allowing Complainant to present the required request-by-request showing in a single, consolidated motion rather than forcing duplicative filings (separate motion, separate memorandum, and piecemeal submissions) addressing the same issues. Complainant has prepared the Motion to Compel in that required request-by-request format to avoid further procedural disputes and to present a clear record for decision, and requests leave to do so without fragmenting the filing into multiple motions or documents. Additionally, given the compressed schedule, Complainant requests leave to present the Motion for Leave and Motion to Compel together in a single submission.

Complainant therefore requests leave to exceed the page limit. If leave is denied, Complainant respectfully requests the Presiding Officer specify his preferred format so Complainant can promptly refile in compliance.

2. COMPLAINANT’S MOTION TO COMPEL REASONABLE DISCOVERY

Complainant by and through their Representative, brings this Motion pursuant to 46 C.F.R. § 502.150(a) and § 502.69 seeking an order compelling Respondent’s compliance with Complainant’s discovery requests. A “failure to make a disclosure, answer, or respond includes an evasive or incomplete disclosure, answer, or response.” 46 C.F.R. § 502.150(a) (1). Respondent’s conduct constitutes precisely that: Respondent has provided evasive and incomplete responses, including “none” responses to requests that seek documents Respondent invokes as substantive justification, refusal to produce objective payment substantiation and third-party communications, and a self-imposed limitation of production that is not found in the Requests and is inconsistent with Respondent’s asserted defenses.

Therefore, Complainant, by and through their Representative, respectfully moves for an Order compelling Respondent to provide complete responses and production to Complainant’s Requests for Production.

1. Certification of Complainant Efforts to Resolve Discovery Matters Through Conferral and Without Commission Intervention

Complainant repeatedly and over the course of several months attempted to resolve Respondent’s discovery deficiencies directly and without Commission intervention. Respondent did not cure the deficiencies; instead, Respondent reiterated evasive positions, imposed improper limitations on production, and refused to provide the clarifications and completion statements necessary to confirm compliance. The conferral history is as follows:

1. **September 16, 2025:** After reviewing Respondent's production, Complainant notified Respondent in writing that Respondent's production was facially deficient and demanded supplementation, including production of third-party communications related to the shipments, and advised that Complainant would move to compel absent supplementation.
2. **January 6, 2026:** Respondent issued a letter asserting Complainant did not identify request numbers, announcing Respondent "will limit production to documents related to those two shipments," and objecting to broader discovery as "overbroad and not proportional," while simultaneously referencing selective Bates ranges for items like "proof of payments" and account records.
3. **January 11, 2026:** Complainant responded and expressly identified that Requests for Production Nos. 1-13 remained incomplete or deficient.
4. **January 22, 2026:** Respondent reiterated evasive and incomplete positions, including stating communications were "verbal" for RFPs 2-3, objecting to RFP 4 as "overly broad" while producing only limited transactional documents, stating "none" for RFPs 10 and 13, and refusing to provide clear request-by-request completion statements.
5. **January 27, 2026:** Complainant sent a detailed cure demand identifying the specific missing categories and clarifications, including:
 - (a) identification of custodians/sources searched for internal communications (RFPs 2-3),
 - (b) production of third-party communications (RFP 4),
 - (c) clarification and identification of the account records comprising alleged "unrelated balances" (RFP 7), and

- (d) request-by-request Bates mapping and completion statements, and set a deadline of February 3, 2026, advising a motion would be filed if Respondent did not cure.
6. **February 3, 2026:** Respondent refused to cure, asserted it had produced “all documents” after a “diligent search,” and stated there was “no need to reiterate matters,” without providing the requested custodian/source identification, request-by-request completion statements, or the demanded third-party communications
 7. **February 4, 2026:** Complainant confirmed impasse and advised Respondent that Complainant will file a motion to compel due to Respondent’s refusal to participate in discovery in good faith.
 8. **February 24, 2026:** Complainant resumed conferral efforts as directed by the Presiding Officer and asked whether Respondent would cure the deficiencies. Respondent replied only, “We will review your requests again,” while repeating the accusation that Complainant had not “matched” documents to requests.
 9. **March 3, 2026:** Complainant followed up and demanded a date certain for completion of Respondent’s “review” and a substantive response. Respondent did not respond.
 10. **March 5, 2026:** Complainant again followed up, stating that despite Respondent’s February 24 promise to “get back,” Complainant still had no substantive response, and reiterating that the April 13 briefing deadline is approaching. Respondent did not respond to that request either.
 11. **March 5, 2026 (separate email):** Respondent sent an email titled “Outstanding Shipment Invoices and Supporting Documentation” and claimed it was “supplementing,” but the “supplement” consisted of account aging and invoice/supporting documentation, not the third-party communications and vendor

identifications demanded, and not a supplementation of Interrogatory 1 identifying all involved contractors/agents (which Complainant had addressed earlier in the day with Respondent via email...with no response).

2. Legal Standard

The Commission's rules authorize discovery of any non-privileged matter that is relevant to a party's claim or defense and proportional to the needs of the proceeding. 46 C.F.R. § 502.141(e)(1). Discovery may be limited only where it is unreasonably cumulative or duplicative, can be obtained from a more convenient source, was previously available to the requesting party, or where the burden clearly outweighs the likely benefit. 46 C.F.R. § 502.141(e)(2)(ii). For good cause, the Commission may manage the burden of discovery through protective orders. 46 C.F.R. § 502.141(j).

Parties must answer interrogatories fully and under oath, and any objections must be stated with specificity. 46 C.F.R. § 502.145(b)(4). If a party elects to respond to an interrogatory by producing business records, it must identify the responsive records in sufficient detail to enable the requesting party to locate and identify them as readily as the responding party. 46 C.F.R. § 502.145(d)(1). Evasive or incomplete answers are treated as a failure to respond. 46 C.F.R. § 502.150(a)(1).

With respect to documents and ESI, a party must produce materials as they are kept in the usual course of business or must organize and label them to correspond to the categories in the request and must produce ESI in a reasonably usable form. 46 C.F.R. § 502.146(b)(2)(v)(A).

Where the Commission's rules do not address an issue, the Federal Rules of Civil Procedure apply to the extent consistent with sound administrative practice, including the

principles in Rules 26, 33, and 34 on proportionality, specific objections, verified responses, and production of usable ESI. 46 C.F.R. § 502.12.

3. Arguments

1. Complainant served Requests for Production seeking documents and communications related to Respondent's handling of Complainant's shipments, Respondent's invoicing and claimed "advanced charges," Respondent's claimed basis for withholding release, and Respondent's practices and communications relating to those events. These Requests for Production were propounded in conjunction with the Request for Admissions and Interrogatories. The discovery at issue includes Requests for Production and Interrogatory No. 1.
2. Respondent's production and written positions are materially deficient. Respondent has
 - (a) limited production to "documents related to two shipments,"
 - (b) refused to provide a request-by-request identification of what was produced,
 - (c) asserted "verbal communications" in lieu of producing internal records and communications,
 - (d) stated "none" as to requests that go to the very written terms and policies Respondent invokes to justify its conduct, and
 - (e) refused to cure these deficiencies despite repeated, good-faith meet-and-confer efforts documented in the parties' correspondence.
3. The disputed discovery is central to the merits. Respondent has invoked "terms and conditions," "lien rights," and alleged "unrelated outstanding balances" as justification for withholding release and/or demanding payment. If Respondent is relying on written terms, account records, internal decisions, and third-party service

communications to justify its actions, those documents are discoverable and must be produced.

4. Complainant conferred in good faith and repeatedly identified the deficiencies and the specific categories that must be produced, including in written communications dated September 16, 2025; January 11, 2026; January 27, 2026; and subsequent February 2026 correspondence, culminating in Complainant's notice that a motion would be filed if Respondent continued to refuse to supplement.

5. Respondent's January 6, 2026, correspondence asserted that Complainant did not identify request numbers and used that assertion to justify limiting production. That position is not accurate and is not a valid basis to avoid full compliance.

Complainant identified the disputed Requests with specificity, including that Requests for Production Nos. 1-13 remained deficient, and demanded request-by-request supplementation and confirmations.

6. Respondent's January 22, 2026, correspondence did not cure the deficiencies. Instead, Respondent continued to take the position that it had produced sufficient documents, complained about correlating Bates numbers to requests, asserted "verbal communications," and responded "none" to certain requests, while simultaneously relying on purported written terms and lien/withholding rights as substantive defenses.

7. On January 27, 2026, Complainant again stated the deficiencies in detail and demanded:

(a) complete supplementation;

(b) identification of custodians, sources, and systems searched for internal communications;

- (c) production of third-party communications;
 - (d) production of substantiation for claimed “advanced charges,” including proof of payment and accounting application;
 - (e) production of documents identifying the “unrelated balances” Respondent claimed justified withholding; and
 - (f) a request-by-request statement identifying Bates ranges responsive to each Request and whether production was complete.
8. Respondent refused to meaningfully engage thereafter and has not provided the requested supplementation, mapping, or sworn confirmation of its claims that documents do not exist.
9. The key deficiencies requiring an order compelling supplementation include at least the following categories (which track the Requests previously identified as deficient):
- (a) Requests for Production No. 2: All internal communications concerning FormuKleen’s account, including decisions to revoke credit terms or reroute shipments
 - i. Respondent’s Answer: Respondent stated “Still checking for others” and producing RX000076-RX000083.
 - ii. The documents were not the full response. Respondent now takes the position that the communications were “verbal” despite the communications relating specifically to substantial and financially significant actions. Complainant has asked Respondent to confirm in writing that there are no further written communications concerning such key account-level actions. Respondent has not

produced complete internal communications, internal notes, system records, decision logs, and other writings regarding credit status, holds, release decisions, warehouse/lien assertions, demands for payment, or any internal deliberations regarding the shipments and Complainant's account. Respondent's "verbal communications" assertion does not excuse the absence of contemporaneous internal writings, system entries, accounting notes, or communications.

(b) Requests for Production No. 3: All internal communications concerning FormuKleen shipments

- i. Respondent's Answer: Respondent stated "Still checking. Internal Communications was [sic] verbal." And producing RX-000076-RX000083.
- ii. The documents were not the full response. Respondent now takes the position that the communications were "verbal" despite the communications relating specifically to substantial and financially significant actions. Complainant has asked Respondent to confirm in writing that there are no further written communications concerning such key account-level actions. Respondent has not produced complete internal communications, internal notes, system records, decision logs, and other writings regarding credit status, holds, release decisions, warehouse/lien assertions, demands for payment, or any internal deliberations regarding the shipments and Complainant's account. Respondent's "verbal communications"

assertion does not excuse the absence of contemporaneous internal writings, system entries, accounting notes, or communications.

(c) Request for Production No. 4: All TSS communications with parties other than FormuKleen relating to all FormuKleen shipments managed by TSS, including the subject shipments

- i. Respondent's Answer: "Objected to as overly broad and not likely to lead to the discovery of admissible evidence. Asking for every document on all shipments is improper."
- ii. Respondent has not produced complete communications with third parties who performed services connected to the shipments (including drayage, terminal/warehouse, inland carriers, other OTIs, and any other vendors). Producing limited transactional documents such as arrival notices, telex releases, a bill of lading, or a single bill is not a substitute for producing the communications with service providers. Even though RFP No. 4 expressly includes the subject shipments, Respondent has still refused to produce the third-party communications for those shipments and instead hides behind the same "overly broad" objection as if the request were limited to "all shipments."

(d) Request for Production 6: All records of duties, drayage, warehousing, storage, or other charges paid or advanced by TSS related to the subject shipments.

i. Respondent's Answer: "See documents already produced which give amounts. More documents will be forthcoming assuming they are still available"

ii. "Advanced charges" substantiation and accounting linkage:

Respondent has not produced complete documentation supporting any claimed "advanced charges," including proof of payment, invoices received from third parties, and accounting records showing how any such charges were applied to Complainant's account and/or the shipments. Where Respondent contends it "advanced" funds, the existence, timing, payee, and amount of the payment is a factual issue that must be supported by payment records, not by self-serving invoice entries.

(e) Request for Production No. 7: All records of duties, drayage, warehousing, storage, port-related, or other charges paid or advanced by TSS on behalf of FormuKleen for any shipment in addition to the subject shipments.

i. Respondent's Answer: "Objected to as overly broad and not likely to lead to the discovery of admissible evidence for shipments that are not at issue in this case, but without waiving ths [sic]objection, please see the aging reports"

ii. "Unrelated balances" / account history: Respondent has invoked "unrelated outstanding balances" as justification for withholding release. Respondent therefore must produce the records constituting those alleged balances - shipment-level detail, invoices, statements,

payment history, and any account ledger or aging detail, sufficient to identify exactly what Respondent contends was owed and why.

(f) Request for Production No. 10: All internal or external guidance or policies on when and how to withhold cargo for unpaid debts.

- i. Respondent's Answer: "No written guidelines that Respondent is aware of."
- ii. Respondent has invoked written "terms and conditions" and/or warehouse/lien rights to justify its conduct yet has responded "none" to requests that seek the very documents Respondent relies upon. Respondent cannot simultaneously rely on written terms while refusing to produce them. To the extent Respondent contends no such written documents exist, Respondent must provide a sworn declaration describing the search and confirming nonexistence.

(g) Request for Production No. 13: All organizational charts or job descriptions showing who was responsible for transportation coordination, customer communication, and financial decision-making during the time of the events at issue.

- i. Respondent's Answer: "None."
- ii. Written terms, policies, and decision-maker/roles: Respondent has invoked written "terms and conditions" and/or warehouse/lien rights to justify its conduct, yet has responded "none" to requests that seek the very documents Respondent relies upon. Respondent cannot simultaneously rely on written terms while refusing to produce them. To the extent Respondent contends no such written documents exist,

Respondent must provide a sworn declaration describing the search and confirming nonexistence.

(h) Request-by-request identification: Despite multiple requests by Complainant, Respondent has refused to provide a request-by-request chart identifying the Bates ranges responsive to each Request and stating whether production is complete or whether documents are being withheld or do not exist. This is necessary to resolve the disputes efficiently and to prevent Respondent from continuing to hide behind generalities and fragmented productions.

(i) Interrogatory No. 1: Identify all employees, contractors, or agents who were involved in the handling, transportation, storage, release, or diversion of the subject shipments.

i. Respondent's Answer: TSS objects to this interrogatory as overly broad to the extent it seeks identification of "all employees, contractors, or agents." Subject to and without waiving this objection, TSS states that it did not hire or retain any "agents" with respect to the subject shipments. The individuals involved on TSS's end were employees Eddy Del Monte and Ricky Villena, who supervised customs clearance and arranged drayage. A drayage vendor was retained solely for transportation under their supervision.

With respect to the subject shipments (BSIU8431017 and CSHU4047424), TSS was not acting as a Non-Vessel-Operating Common Carrier ("NVOCC") or as an Ocean Transportation Intermediary ("OTI"). The term OTI refers to both an Ocean Freight

Forwarder and an NVOCC. See 46 U.S.C. § 40102(17), (21); 46 C.F.R. § 515.2(k)–(l).

Under these provisions, an NVOCC is one that issues a house bill of lading, holds itself out as providing ocean transportation for hire, books cargo with ocean carriers, or otherwise assumes carrier responsibility for the ocean carriage of goods. TSS did none of these things. It did not book the cargo with the ocean carriers, did not issue house bills of lading, and did not assume or undertake responsibility for the ocean carriage of the shipments. Nor did TSS act as an Ocean Freight Forwarder or an NVOCC.

Instead, TSS's role was limited to customs clearance, arranging drayage, and, in the case of container BSIU8431017, providing temporary warehouse services pending payment. Once payment was made, both shipments were released and delivered. These activities were undertaken in TSS's capacity as a warehouse and drayage provider, not as an NVOCC or Ocean Freight Forwarder.

- ii. Respondent's answer does not respond to the interrogatory as written. Interrogatory No. 1 requires identification of all employees, contractors, or agents who were involved in the handling, transportation, storage, release, or diversion of the subject shipments, regardless of whether they were "hired or retained" by Respondent. Respondent improperly reframes the interrogatory into a hiring question ("did not hire or retain any 'agents'") and then limits the response to "on TSS's end," which is not what the interrogatory asks. Further, Respondent's own answer confirms third

parties were involved (“a drayage vendor was retained”), yet Respondent refuses to identify that vendor by name and provides no identification of other involved third parties referenced elsewhere (e.g., the “trucking partner’s yard,” the “trucking company,” truck yard/warehouse entities). An objection to the word “all” does not permit Respondent to withhold basic identities of the contractors/vendors it admits participated in the shipments’ transportation, storage, and release. Finally, Respondent’s lengthy discussion of why it was not acting as an OTI/NVOCC is argument, not an answer. Whether Respondent believes it was an OTI is not responsive to the interrogatory, which seeks identification of the individuals and entities involved. At minimum, Respondent should be compelled to supplement Interrogatory No. 1 with the names and contact information of every contractor/vendor/agent involved with the subject shipments, including the drayage vendor retained, steamship lines, any trucking company/driver, and any yard/warehouse operators involved in storage, holds, and release.

10. Respondent’s failure to produce third-party communications, particularly as to Request for Production No. 4, appears calculated to obstruct discovery of facts that will corroborate Complainant’s claims regarding Respondent’s role in the subject shipments and undermine Respondent’s asserted justifications. Email communications are objective, readily identifiable business records. Respondent’s refusal to produce them supports an inference that Respondent is withholding

evidence because it is adverse to Respondent's position and supportive of Complainant's.

11. Respondent's continuing refusal to supplement is prejudicial. Complainant cannot prepare the case, evaluate Respondent's defenses, or test Respondent's factual assertions (including claimed bases for withholding, liens, terms, and balances) without documents uniquely in Respondent's possession, custody, or control.
12. Good cause exists for an order compelling Respondent to provide full and complete responses and production, because Respondent's limitations, "none" responses, and "verbal communications" assertions are inconsistent with the positions Respondent is taking to justify its conduct and are not a substitute for document production.

Accordingly, Complainant respectfully requests that the Commission enter an Order:

- A. Compelling Respondent to serve complete supplemental responses and to produce all documents responsive to the disputed Requests for Production (including, at minimum, the Requests Complainant has identified as deficient), without limiting production to only two shipments where Respondent's asserted justification relies on account-level balances and related records;
- B. Compelling Respondent to produce all internal communications and internal records concerning credit status, holds, release decisions, warehouse/lien assertions, demands for payment, and related decision-making, including emails, texts, messaging-app communications, system notes, accounting notes, task/ticketing records, and any other internal writings or records;
 - (a) Compelling Respondent to produce all documents responsive to Request for Production No. 4, including:

- (i) all electronic communications with third parties relating to services performed, charges incurred, movement, storage, release, and delivery associated with the shipments and the events at issue.
- C. Compelling Respondent to produce documents substantiating all claimed “advanced charges,” including third-party invoices, proof of payment, and accounting records showing application to Complainant’s account and/or the shipments;
- D. Compelling Respondent to produce documents identifying, itemizing, and substantiating any alleged “unrelated outstanding balances” Respondent claims justified withholding, including account ledgers, aging detail, statements, invoices, payment history, and shipment-level detail;
- E. Compelling Respondent to produce the written terms, conditions, policies, agreements, warehouse receipts/terms, lien-related writings, and any other documents Respondent contends authorized its actions; or, if Respondent contends such documents do not exist, requiring Respondent to provide a sworn declaration detailing the custodians, sources, systems, date ranges, and search methodology used and confirming nonexistence;
- F. Requiring Respondent to provide a request-by-request production index identifying the Bates ranges produced in response to each Request and stating for each Request whether Respondent’s production is complete, whether documents are being withheld (and on what basis), and/or whether no responsive documents exist;
- G. To the extent Respondent withholds documents on privilege, requiring a privilege log sufficient to assess the claim of privilege; and

H. Granting such other and further relief as the Commission deems just and proper, including sanctions or other appropriate relief if Respondent continues to refuse compliance without substantial justification.

4. Conclusion

Respondent's discovery posture is not a good-faith dispute over scope; it is a strategy. Respondent has stonewalled with "verbal" claims for internal communications, refused to identify third parties while admitting a drayage vendor and other outside entities were involved, and objected to producing the very third-party communications that would prove Respondent's role in the subject shipments.

This is not harmless delay. It is deliberate time compression. Compounding the prejudice, the Presiding Officer's prior order denying the motion to compel without prejudice directed the parties to attempt resolution without Commission intervention. Complainant complied and renewed conferral efforts, which consumed additional time without any meaningful supplementation from Respondent, despite months of prior meet-and-confer efforts and Respondent's longstanding awareness of the same deficiencies. After the Presiding Officer directed the parties to attempt resolution without Commission intervention, Complainant resumed conferral on February 24. Respondent used that instruction as cover to stall, responding only that it would 'review' again, then ignoring Complainant's March 3 and March 5 requests for a date certain and the specific supplementation demanded, while the April 13 briefing deadline rapidly approaches.

Complainant's Opening Brief, Proposed Findings of Fact, and Appendix are due April 13, and it is now March 9. Respondent has known for months what is missing, has been given repeated opportunities to cure, and has refused to do so while running out the clock. Respondent's refusal to produce basic internal and third-party communications has

not only forced Complainant to prepare merits briefing without core evidence uniquely within Respondent's control, it has also effectively eliminated any meaningful time for Complainant to identify and subpoena the third parties Respondent admits were involved (including drayage vendors, a trucking partner/yard, a trucking company, steamship lines, and truck yard/warehouse entities).

Respondent's refusal to answer Interrogatory 1 has independently foreclosed third-party discovery. Interrogatory 1 requires Respondent to identify all employees, contractors, or agents involved in the handling, transportation, storage, release, or diversion of the subject shipments. Respondent instead reframed the interrogatory into whether it "hired or retained" agents and limited the answer to "on TSS's end," while simultaneously admitting a drayage vendor existed, yet refusing to identify the vendor or other involved third parties. As a result, Complainant cannot timely identify or subpoena the third parties Respondent admits were involved, compounding the prejudice as the April 13 briefing deadline approaches.

The practical effect is to force Complainant to brief merits issues without the core documents and communications uniquely within Respondent's control, precisely the prejudice the Commission's discovery rules are designed to prevent.

If this conduct is allowed to stand, Respondent is rewarded for noncompliance: the less Respondent produces, the harder it becomes for Complainant to prove its case on the schedule the Commission has imposed. That is the opposite of proportional, fair discovery. The Commission should not permit Respondent to convert discovery into a procedural weapon. Complainant acknowledges the Presiding Officer's frustration with these proceedings, and shares that frustration. However, Respondent's obstruction throughout

this matter is only strengthened if Respondent is permitted to withhold discovery while Complainant remains bound to an inflexible schedule. Complainant has maintained throughout these proceedings that Respondent's conduct has prejudiced Complainant and prevented an equitable and fair process.

For these reasons, Complainant respectfully requests that the Presiding Officer grant this Motion and order immediate supplementation consistent with the relief requested herein, so this case can be decided on a complete record rather than on Respondent's obstruction and manufactured time pressure.

Respectfully Submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

FourOneOne LLC

2501 Chatham Rd, Suite 8082

Springfield, IL 62704

Email: sara@fouroneone.io

Phone: 630-286-9846

Signature: 

Date: 3/09/2026

CERTIFICATE OF CONFERRAL

I certify that I have, in good faith, attempted to confer with opposing counsel regarding the issues contained within this Motion, and to date, the discovery issues remain unresolved.

CERTIFICATE OF SERVICE

I certify that on March 9th, 2026, a true and current copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

Daniel W. Raab, Esq.

Attorney for Respondent

9555 North Kendall Drive Suite 210

Miami, Florida 33176

Telephone: 305-598-5517

Email: raabdaniel57@gmail.com